



SPONSOR: Sen. Sokola & Rep. Heffernan
Sens. Mantzavinos, Pettyjohn, Townsend, Walsh; Rep.
Burns

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 105

AN ACT TO AMEND TITLE 16 OF THE DELAWARE CODE RELATING TO THE ENHANCED 911 EMERGENCY REPORTING SYSTEM SERVICE BOARD.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 10005, Title 16 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 10005. Enhanced 911 Emergency Reporting System Service Board.

4 (c)(1) The Board ~~shall be comprised of 7 members,~~ is comprised as follows:

5 a. ~~6 of whom are Five members,~~ appointed by the Governor with the ~~advice and consent of the Senate.~~
6 consent of a majority of all the members elected to the Senate.

7 b. ~~One member of the Board shall be the~~ The Chief Information Officer of the Department of Technology
8 and ~~Information~~ Information, or a designee of the Chief Information Officer.

9 c. The Secretary, or a designee of the Secretary.

10 (2) ~~The Governor shall designate a chairperson who shall serve an unlimited term at the pleasure of the~~
11 ~~Governor.~~ The Secretary, or a designee of the Secretary, serves as Chair of the Board.

12 (3) At least 3 members ~~shall have~~ appointed under paragraph (c)(1)a. of this section must have technical or
13 financial expertise on telecommunications issues and at least 1 member ~~shall be~~ appointed under paragraph (c)(1)a. of
14 this section must be a representative from the Delaware Association of County Governments.

15 (4) The term of each member, excluding the ~~chairperson who shall serve at the pleasure of the Governor and~~
16 the Chief Information Officer of the Department of Technology and ~~Information~~ Information, or the Chief Information
17 Officer's designee, ~~shall be for 3 years except that for the initial members of the Board, 2 members shall be appointed~~
18 ~~for a term of 1 year, 2 members shall be appointed for a term of 2 years, and 2 members shall be appointed for a term~~
19 ~~of 3 years.~~ designee, and the Secretary, or the Secretary's designee, is 3 years.

20 (5) The members of the Board ~~shall be permitted to~~ appointed under paragraph (c)(1)a. of this section may
21 attend a meeting of the Board by proxy no more than 3 times in a calendar year. A proxy vote ~~shall have~~ has the same

22 force and effect as if the proxy vote had been taken by a vote of the actual appointed member of the Board who
23 designated the proxy.

24 Section 2. On the enactment date of this Act, the term of the member appointed by the Governor under § 10005(c)
25 of Title 16 of the Delaware Code to be Chair of the Enhanced 911 Emergency Reporting System Service Board is
26 terminated and this Act applies.

SYNOPSIS

This Act provides that the Secretary of the Department of Safety and Homeland Security (“Secretary”), or the Secretary’s designee, is a member of the Enhanced 911 Emergency Reporting System Service Board (“Board”) by virtue of the Secretary’s position. This Act also makes the Secretary, or the Secretary’s designee, the Board Chair.

The Secretary is currently, and historically, an appointed member of the Board and this Act would codify that practice.

This Act also makes technical corrections to conform existing law to the standards of the Delaware Legislative Drafting Manual.

Author: Senator Sokola